

Court No. - 7

Case :- WRIT - C No. - 21792 of 2018

Petitioner :- Ram Bhajan Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gyanendra Kumar Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Neeraj Tiwari, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and Shri Shrawan Kumar Tripathi, learned counsel for third respondent.

Petitioner is before this Court with the request to quash the impugned recovery certificate/citation dated 30.05.2018 issued by Executive Engineer, Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd., Mainpuri. Further prayer has been made to command the respondents not to take any coercive measure against the petitioner in pursuance of the impugned recovery certificate/citation dated 30.05.2018.

Learned counsel for the petitioner states that in response to the electricity connection, the petitioner has already deposited her electricity dues upto May 2018 and on the basis of averment contained in paragraph 16 of the writ petition, it is submitted that even though no recovery citation has been issued, the Authority, on the spot, is threatening the petitioner to realise the amount of Rs.2,12,507/- and as such, this Court should come to the rescue and relieve of the petitioner.

Considering the entire facts and circumstances of the case, this Court is of the considered opinion that as the petitioner is disputing the alleged amount, then he is at liberty to move an appropriate application before the Executive Engineer, Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd., Mainpuri as per the provision contained under Clause 6.5 of Electricity Supply Code, 2005 and in case any such application is moved within a week's time, then this Court hopes and trust that the Authority concerned would proceed to pass appropriate order in further two weeks. It is made clear that till the disposal of the same, no coercive actions shall be taken against the petitioner.

With these observations, Writ Petition is ***disposed of***.

Order Date :- 21.6.2018

A. Pandey